

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER  
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND  
IDENTIFIERS ARE FICTIONAL**

Branch source B12: mandate-stay denial-order route marker B12.

# **United States Court of Appeals for the Fourth Circuit**

## **Mara Ellison v. Officer Nolan Rusk**

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

### **Order Denying Motion to Stay Mandate Pending Certiorari**

Entered July 20, 2026

Officer Nolan Rusk's motion to stay the mandate pending preparation of a petition for a writ of certiorari is denied. The panel's June 30 opinion dismissed Rusk's factual-sufficiency challenge for lack of collateral-order jurisdiction and affirmed the legal denial of qualified immunity on the district court's plaintiff-favorable assumptions. Rusk timely sought a mandate stay on July 15; Mara Ellison filed her opposition on July 17.

Federal Rule of Appellate Procedure 41(d)(1) requires a showing that the proposed petition would present a substantial question and that good cause supports continued withholding. Rusk has not made both showings. His proposed question asks the Supreme Court to compare this assumed single-cycle force sequence with the facts and prospective notice in circuit precedent. He identifies no division among the courts of appeals and no unsettled procedural rule.

The panel remains satisfied that *Estate of Armstrong v. Village of Pinehurst* stated sufficiently particular notice for later officers confronting a nonviolent mental-health subject who presented no immediate safety risk. *Zorn v. Linton* supplies the current specificity method but involved a different control technique and circumstances. The Court's conclusion does not treat *Zorn* as law available when Rusk acted.

The request for a Rule 41(d) stay is DENIED.

## Substantial Question and Good Cause

The number of electrical cycles, the subject's movement, and the stage of restraint are relevant circumstances. They do not turn this case into a substantial certiorari question on the assumed record. *Armstrong* addressed drive-stun force, protective seizure, nonviolent physical resistance, several officers, and absence of danger, then deliberately warned future officers. The panel applied that concrete relationship rather than a bare command to behave reasonably.

Rusk remains free to disagree and to petition. Rule 41(d), however, does not make a stay automatic whenever counsel can formulate a qualified-immunity question. The proposed petition principally alleges an erroneous application of settled law to a specific episode and does not show a reasonable basis for expecting Supreme Court review.

Good cause is also lacking. No imminent trial date appears, and the district court can manage its schedule while any petition proceeds. Discovery already exists, so remand does not require repeating the litigation from the beginning. General burdens of defending a claim cannot alone justify a stay after the appellate court has exercised collateral jurisdiction and resolved the legal defense.

The Court has considered Ellison's interest in moving a February 2025 claim toward adjudication and Rusk's interest in avoiding trial if further review succeeds. On this record, those interests do not support retaining appellate control for up to ninety more days on the strength of an unfiled petition.

## **Express Mandate Schedule**

The filing of Rusk's motion held the mandate while the request was pending. Under the default text of Rule 41(b), denial of a mandate-stay motion would ordinarily be followed by seven additional days before issuance. The rule also authorizes this Court to shorten or extend that period by order.

The panel expressly shortens the post-denial interval and directs the Clerk to issue the mandate on July 21, 2026. That is the original ordinary issuance date calculated from the June 30 judgment, the July 14 expiration of rehearing time, and the ensuing seven days. Restoring that date gives the parties notice, avoids an unintended extension produced by an unsuccessful motion, and allows one calendar day for administrative release.

This timing direction is part of the present order. The denial itself is not a mandate, and the judgment does not become effective in the district court until the Clerk issues the certified materials tomorrow. No mandate has previously issued or been recalled.

Rusk may pursue any relief available under governing Supreme Court procedures, but no circuit stay remains in effect. No bond is required because relief is denied. The Clerk shall serve this order electronically, mark July 21 as the directed issuance date, and maintain this denial path separately from every grant or ordinary-release branch.

Entered at the direction of Chief Judge Alder and Judges Reed and March.